

HOUSE BILL 2049

By Camper

AN ACT to amend Tennessee Code Annotated, Title 4;
Title 63 and Title 68, relative to the state uterine
fibroids commission.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 63, is amended by adding the following
as a new chapter:

63-33-101.

(a) There is established the state uterine fibroids commission, to be composed
of eleven (11) members appointed under subsection (b).

(b)

(1) The governor shall appoint the following members to the commission:

(A) One (1) person from the Tennessee Nurses Association;

(B) One (1) person from the Tennessee Primary Care

Association;

(C) One (1) person from the University of Tennessee, Knoxville
School of Nursing;

(D) One (1) person from the University of Tennessee at Memphis
School of Public Health;

(E) One (1) person from the (HCA) Healthcare, Inc.;

(F) One (1) person from the Community Health Systems (CHS)
Healthcare System;

(G) One (1) member from the Tennessee Hospital Association;

and

(H) Two (2) members who are persons who have been diagnosed with uterine fibroids, polycystic ovary syndrome, or endometriosis.

(2)

(A) The speaker of the house of representatives shall appoint one (1) member of the house of representatives; and

(B) The speaker of the senate shall appoint one (1) member of the senate.

(3) Each member shall serve at the pleasure of the appointing authority.

(4)

(A) Initial appointees to the commission pursuant to subdivision (b)(1) serve staggered terms as follows:

(i) Persons appointed under subdivisions (b)(1)(A)-(C) serve initial terms of three (3) years that terminate on June 30, 2029;

(ii) Persons appointed under subdivisions (b)(1)(D)-(F) serve initial terms of four (4) years that terminate on June 30, 2030; and

(iii) Persons appointed under subdivisions (b)(1)(G) and (H) serve initial terms of five (5) years that terminate on June 30, 2031.

(B) Following the expiration of members' initial terms as prescribed in subdivision (b)(4)(A), all appointments to the commission shall be for terms of five (5) years and shall begin on July 1 and terminate on June 30, five (5) years thereafter.

(C) Commission members appointed under subdivision (b)(1) serve until the expiration of the term to which they were appointed and until their successors are appointed and qualified.

(5) Legislative members of the commission appointed under subdivision (b)(2) serve terms of two (2) years and may be reappointed for one (1) additional two-year term, with both terms running commensurate with their service as members of the general assembly.

63-33-102.

(a)

(1) The commission shall adopt bylaws to provide for the governance of the commission, including, but not limited to, procedures and grounds for the removal of a commission member.

(2) Procedures for filling a vacancy created by the removal, resignation, or death of any commission member prior to the end of the commission member's term are the same as those used for initial appointments.

(b) Commission members serve without compensation. Legislators shall receive the same per diem and travel reimbursement for attending a meeting of the commission as is normally provided for members of the legislature. Nonlegislative commission members may receive reimbursement for expenses in accordance with the guidelines of the entity they represent.

(c) The commission shall elect a chair by a majority vote of its members, for a term to be determined by the commission.

(d) The commission shall hold quarterly public meetings unless otherwise determined by majority vote of the commission or by order of the chair.

(e) A majority of commission members constitutes a quorum for the transaction of business. A majority vote of the commission members constituting a quorum is necessary for any action taken by the commission.

(f) The department of health shall provide administrative assistance and serve as staff for the commission.

63-33-103.

(a) The commission shall:

(1) Evaluate functions and activities of existing groups focused on uterine fibroids and other related conditions to collaborate with and engage stakeholders;

(2) Support and contextualize reporting on uterine fibroids and other related conditions;

(3) Serve as an advisory body to the governor and the department of health on matters relating to uterine fibroids, polycystic ovary syndrome, and endometriosis;

(4) Research and review all state regulations, guidelines, policies, and procedures relative to the prevention, treatment, and care of women living with uterine fibroids and other related conditions and, when appropriate, make recommendations to the governor, the department of health, and the legislature;

(5) Provide a forum for an annual public hearing on matters relating to uterine fibroids and other related conditions, and provide for other public comment and peer review on federal and state-funded programs related to uterine fibroids and other related conditions; and

(6) Make recommendations on policy to ensure that the state establishes public health monitoring, advances research, and provides solutions for women diagnosed with uterine fibroids and other related conditions.

(b) The commission shall submit an annual report to the health and welfare committee of the senate and the committee of the house of representatives having jurisdiction over matters related to personal health no later than December 31 of each year. The commission shall include a summary of the data relevant to the functions set forth in subsection (a) of this section in the report.

SECTION 2. Tennessee Code Annotated, Section 4-29-249(a), is amended by inserting the following new subdivision:

() State uterine fibroids commission, created by § 63-33-101;

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.